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February 10, 2026

VIA ECF & EMAIL
Presiding Judge
Superior Court of New York, New York County
Commercial Division
60 Centre Street
New York, NY 10007

Re: Dr. Peter Daszak, Ph.D. v. EcoHealth Alliance Inc., et al. Index No. 164611/2025

To the Honorable Presiding Judge:

We represent all Defendants in the above-referenced matter. Pursuant to the Commercial Division's Rules of Practice[1], we respectfully request a pre-motion conference in connection with Defendant's proposed motion to dismiss the Verified Complaint of Plaintiff Peter Daszak ("Plaintiff") pursuant to Rules 3211(a)(7) and 3211(a)(11) of the New York Civil Practice Law and Rules ("CPLR") and the New York Consolidated Laws Service Not-For-Profit Corporation Law § 720-a ("NY CLS N-PCL").

Plaintiff, a former employee of EcoHealth Alliance, Inc. ("EHA"), asserts claims of breach of contract under New York common law and age discrimination under the New York State Human Rights Law ("NYSHRL") and New York City Human Rights Law ("NYCHRL"). As discussed further herein, Plaintiff's Complaint is defective, these defects cannot be cured, and the Complaint should be dismissed with prejudice.

A. Basis for Motion to Dismiss

The factual background as alleged in Plaintiff's Verified Complaint is that: i) EHA is a non-profit corporation formed under the laws of the Commonwealth of Massachusetts and was financially supported by grants from the United States Federal government (the "Government") (Comp. ¶¶8, 30); ii) the Government awarded EHA a grant on or around May 27, 2014 to fund public health scientific research between 2014 to 2019 (the "Grant") (Comp. ¶33); iii) the Grant was used to study the potential transmission of coronaviruses from bats to humans with the Wuhan Institute of Virology in Wuhan, China (Comp. ¶33); iv) in April of 2020, the Government commenced an investigation into EHA and Plaintiff after the coronavirus emerged in Wuhan, China in 2019 and in the United States in 2020 (Comp. ¶¶34-37); and v) the Government ultimately debarred Plaintiff and EHA in January 2024, precluding any of them from receiving federal funds for five years (Comp. ¶¶45, 46).[2] As a result of this loss of funding in January 2024, Plaintiff, in his role, terminated the employment of 40 EHA employees before the Board terminated Plaintiff's employment. (Comp. ¶¶47, 48; Ex. 3)

i. The Individual Defendants Are Immune from Liability.

Pursuant to N.Y. Not-for-Profit Corp. Law § 720-a, directors, officers, and trustees who serve without compensation in not-for-profit corporations are protected from liability for conduct in the execution of their office, unless their conduct constituted gross negligence or intentional harm. See NY

[1] Defendants consent to Plaintiff's February 3, 2026 request to assign this matter to the Commercial Division.
[2] The U.S. Dept. of Health and Human Services determined that the serious and egregious nature of Daszak's misconduct provided cause for the debarment of EHA. See https://oversight.house.gov/wp-content/uploads/2025/01/Dr.-Daszak-HHS-ARM_1.17.2025_Redacted.pdf at p.24.

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CLS N-PCL § 720-a; see also Epstein v. Epstein Teicher Philanthropies, Index No. 654417/2020, 2021 N.Y. Misc. LEXIS 6088 at *20-21 (Sup. Ct. N.Y. Cty. Nov 26, 2021). While Plaintiff names every individual member of EHA's Board of Directors he fails to provide any facts whatsoever to overcome their statutory protection so as to result in their inclusion in the case. (Comp. ¶¶9-27). Plaintiff's failure to do so warrants dismissal of the named Directors under the N.Y. Not-for Profit Law.[3]

ii. Plaintiff's Breach of Contract Claim Suffers Incurable Defects.

Plaintiff did not have an individual employment agreement with EcoHealth Alliance, Inc. Notably, no agreement is annexed to the Complaint. This alone warrants dismissal of Plaintiff's breach claim. See Valley Cadillac Corp. v. Dick, 238 A.D.2d 894 (App. Div. 4th Dep't Apr. 25, 1997)(Holding that in order to survive a motion to dismiss for breach of contract, the complaint must set forth the terms of the agreement upon which liability is predicated, either by express reference or by attaching a copy). Here, instead of attaching or expressly referencing the alleged employment contract to the Complaint, Plaintiff's breach claims rest on EHA's general by-laws which provide merely that the position of President should exist, certainly not an employment agreement. He also fails to plead how any by-laws were violated. This general pleading is insufficient to establish a cause of action for breach of an employment contract.

iii. Plaintiff's Speculative Allegations of Age Discrimination Termination Fail To State a Claim.

Plaintiff merely states his age at the time of termination to support of his age discrimination claims (Comp. ¶56) while conceding that younger employees were also terminated (Comp. ¶¶47; 62). He fails to note his position was not even filled after his dismissal. Further, as alleged, Plaintiff failed to plead the existence of any comparators to establish an age claim. The mere fact that younger employees received severance is insufficient; Plaintiff must allege the existence of employees who were similarly situated in all respects. Thomas v Mintz, 182 A.D.3d 490, 490-491 (1st Dep't 2020)(dismissing age discrimination claims where a plaintiff failed to allege facts that would establish that similarly situated persons who were outside of plaintiff's protected class were treated more favorably than Plaintiff). Here, Plaintiff fails to allege the existence of any younger employees who were (i) in a similar position or role to Plaintiff; (ii) who were also debarred and (iii) who received severance. This failure warrants dismissal of Plaintiff's age discrimination claims.

B. Relief Sought

Defendants respectfully request a telephone conference in anticipation of their motion to dismiss the complaint. Thank you for your consideration of this request.

Respectfully submitted,

JACKSON LEWIS P.C.

/s/ Joseph Anci
Joseph Anci, Corrine Shea
Attorneys for Defendants

cc: Joseph E. Gasperetti, Attorney for Plaintiff (via NYSCEF)

[3] The General Laws of Massachusetts, EcoHealth's home state, similarly provides uncompensated directors with immunity from liability absent gross negligence or intent to harm. See M.G.L. c. 231 § 85W.